

Stereo.HCJDA 38.  
**Judgment Sheet**  
**LAHORE HIGH COURT**  
**RAWALPINDI BENCH RAWALPINDI**  
**JUDICIAL DEPARTMENT**

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**CIVIL REVISION NO.13-D of 2017**

MUZAMMIL

**Versus**

BAHADUR KHAN and others

**JUDGMENT**

Date of hearing: 27.02.2026  
Applicant by: Malik Muhammad Kabir, Advocate.  
Respondents No.2 to 5 by: Ms. Rahat Farooq Raja, Assistant  
Advocate General for Punjab.  
Respondents No.1, 6  
to 17 & 21.a by: Ex-parte.  
Respondents No.18 & 19 by: Mr. Atif Farzauq Raja, Advocate.  
Respondent No.20 by: Nemo.

**MIRZA VIOAS RAUF, J.** Property measuring 131 Kanal 16 Marla is part of total land measuring 263 Kanal 12 Marla bearing Khewat No.90, Khatooni Nos.325 & 326, Khasra Nos.4396 & 4398 (new Khasra Nos.4690 & 4692) situated in village Domail Tehsil Jand District Attock (hereinafter referred to as “**suit property**”). The **suit property** was originally owned by Karam Khan, Mowaz Khan and Mst. Shahzadan (hereinafter referred to as “**mortgagors**”) whereas remaining land was the ownership of Ahmad Khan son of Soba Khan. Initially **suit property** was mortgaged through mutation No.387 dated 21<sup>st</sup> February, 1930 in favour of Dullah, Gulab and Bahadur in lieu of an amount Rs.500/- from Ahmad Khan son of Soba Khan and **mortgagors** but subsequently mutation No.1569

dated 28<sup>th</sup> May, 1939 was sanctioned in favour of Dullah, Gulab and Bahadur from **mortgagors**. The respondent No.1 (hereinafter referred to as “**respondent**”) claiming to have purchased mortgagee rights from Nawab son of Gulab and Nadir son of Bahadur for a consideration Rs.1,200/- through mutation No.412 dated 30<sup>th</sup> July, 1983 instituted suit for declaration and injunction on the ground that he had become owner of the **suit property** by prescription after expiry of period of sixty years, as it has not been got redeemed by the **mortgagors**. The applicant, being son of Nawab (son of Gulab) and one of the defendants, contested the suit by filing a written statement wherein he controverted the assertions contained in the plaint. From the divergent pleadings of the parties, multiple issues were framed whereafter evidence of both the sides was recorded and ultimately suit was decreed vide judgment dated 9<sup>th</sup> December, 2015. Being aggrieved, the applicant though preferred an appeal before learned Additional District Judge, Attock but remained unsuccessful, as his appeal was dismissed vide judgment and decree dated 10<sup>th</sup> November, 2016, hence this revision application in terms of Section 115 of the Code of Civil Procedure (V of 1908) (hereinafter referred to as “**C.P.C.**”).

2. This revision application was filed way back in the year 2017 but it is still at pre-admission stage but in view of its pendency since long and the nature of controversy involved in the same, all in attendance have agreed to treat the same as *pacca* case and decide it as such.

3. I have heard learned counsel for the respective parties as well as learned Law Officer and perused the record.

4. The **suit property** was originally owned by Ahmad Khan and **mortgagors**, who mortgaged the same in favour of Dullah and others through mutation No.387 dated 21<sup>st</sup> February, 1930 (Exhibit-P2). The **respondent** purchased the mortgagee rights from the original mortgagees through mutation No.412 dated 30<sup>th</sup> July, 1983 (Exhibit-P4). In this backdrop, he instituted the suit claiming right of

ownership by prescription on the ground that since the **mortgagors** failed to get the **suit property** redeemed within sixty years, so he became owner of the same. Article 148 of the Limitation Act, 1908 (hereinafter referred to as “**Act 1908**”) provides a period of sixty years to a mortgagor to get redeemed the mortgaged property or to recover its possession from the mortgagee from the date when the right to redeem or to recover possession accrues. Suit was, however, instituted by **respondent** being subsequent mortgagee on the ground that since the **mortgagors** failed to get the property redeemed within prescribed period, so with the efflux of time, he became owner of the **suit property**. The claim of the **respondent** mainly hinges upon Section 28 of the **Act 1908**, which admittedly has been declared as repugnant to the injunctions of Islam by the Shariat Appellate Bench of the Supreme Court of Pakistan in the case of مقبول احمد بنام حکومت پاکستان (1991 SCMR 2063).

5. The basic theme and object for declaring the said provision of law as repugnant to injunctions of Islam seems to be that no lawful owner can be deprived of his right, merely by efflux of time nor a person enjoying possession for such a long period can be rewarded with premium of ownership. Even otherwise the mortgagee enjoying the possession of mortgaged property for sixty years or more recovers manifold through its usufruct, more than his mortgage money and cannot additionally be bestowed with the ownership of the property, as well, on expiry of sixty years. Guidance to this effect can be sought from MUNAWAR SHAH versus BAHADUR SHAH and 7 others (2007 SCMR 597) wherein the Supreme Court of Pakistan held as under :-

“7. The main point, which requires serious consideration, is whether the petitioner has matured his title through adverse possession. The petitioner claimed that respondents have lost their rights of ownership and status of mortgagors over the suit property and he has become owner in possession of the same due to open and hostile possession for more than 12 years and also by prescription for being remained in possession as mortgagee for more than 60 years. We are of the opinion that this plea is not available to him inasmuch as section 28 of the Act has been declared repugnant to the Injunctions of Islam by this Court in

the case of *Maqbool Ahmad v. Hakoomat-e-Pakistan* 1991 SCMR 2963, wherein it has been held that section 28 of the Act is repugnant to the Injunctions of Islam insofar as it provides for extinguishment of the right in the property at the determination of the period prescribed for instituting a suit for possession of the said property and that this decision shall take effect from 31st of August, 1991 and on this date section 28 of the Act shall also cease to have effect.”

Reference to the above effect can also be made to *DURRANAI and 35 others versus Hamidullah KHAN and 15 others* (2007 SCMR 480).

6. Leaving aside above aspect when it is an admitted position that in pursuant to original mortgage transaction (mutation No.387 dated 21<sup>st</sup> February, 1930), mutation No.412 dated 30<sup>th</sup> July, 1983 was sanctioned in favour of **respondent** then in the circumstances the limitation would start running from the date of later mutation. Section 19 of the **Act 1908** caters the situation, which reads as under:-

“19. *Effect of acknowledgment in writing.* (1) Where, before the expiration of the period prescribed for a suit or application in respect of any property or right, an acknowledgment of liability in respect of such property or right has been made in writing signed by the party against whom such property or right is claimed, or by same person through whom he derives title or liability, a fresh period of limitation shall be computed from the time when the acknowledgment was so signed.

(2) Where the writing containing the acknowledgment is undated, oral evidence may be given of the time when it was signed; but subject to the provisions of the Evidence Act, 1872, oral evidence of its contents shall not be received.”

From bare perusal of the above referred provision of law there remains no cavil to the fact that in case of transfer of mortgagee rights through subsequent transaction in writing, the limitation would start running from that date. Reliance to this effect can be placed on *Mst. BILQEES MALIK and 3 others versus Rana MUHAMMAD IFTIKHARUDDIN and 7 others* (PLD 1997 Lahore 733). The relevant extract from the same is reproduced below :-

“3. The mortgage was created on 15-12-1922 and the sixty years limitation commuted from this date had expired on 15-12-1982. It is also admitted fact that original mortgagees have further mortgaged the property in question vide registered sale deed on 6-2-1933. The question for determination by this Court is, whether time for instituting a suit will begin from the original mortgage deed dated 15-12-1922 or from the second

mortgage deed executed by the mortgagee on 6-2-1933? The only question of law, therefore, to be examined is the effect of section 19 of the Limitation Act which is reproduced hereunder:

- "19. Effect of acknowledgment in writing.--(1) Where, before the expiration of the period prescribed for a suit or application in respect of any property or right, an acknowledgment of liability in respect of such property or right has been made in writing signed by the party against whom such property or right is claimed, a fresh period of limitation shall be computed from the time when the acknowledgment was so signed.
- (2) Where the writing containing the acknowledgment is undated, oral evidence may be given of the time when it was signed; but subject to the provisions of the Evidence Act, 1872, oral evidence of its contents shall not be received."

The above section 19(1) prescribes one condition only that right has been made in writing signed by the party against whom such property or right is claimed. It is pertinent to mention here that in the present case, subsequent mortgage deed was also registered one, therefore, it fulfils the requirement of this section. It is a registered document, therefore, its contents could be proved under the Evidence Act or Qanun-e-Shahadat."

Guidance to the above effect can also be sought from AHMAD KHAN and others versus ABDUR REHMAN and others (2009 SCMR 191).

7. Though there are concurrent findings of facts recorded by both the courts but they were clearly oblivious of this important principle of law. Suit was not only premature, as it was instituted before expiry of sixty years as required in terms of Article 148 of the **Act 1908** but it was not maintainable as well. The scope of revisional jurisdiction is hedged in Section 115 of the **C.P.C.** and though ordinarily concurrent findings of facts are not disturbed but such findings are neither sacrosanct nor it is an inflexible rule that despite observing material flaws, the revisional court will abdicate to exercise its jurisdiction. The judgments passed by the courts below are not based on proper appraisal of evidence and the learned Civil Judge, while decreeing the suit of the **respondent** has grossly misread the evidence as already noted hereinabove. The appellate court in the circumstances, while upholding the judgment and decree of trial court thus committed a material irregularity. This Court under Section 115 of the **C.P.C.** is thus obliged and fully competent to correct such error in exercise of its revisional jurisdiction. Needless

to observe that when once it is established on the record that concurrent findings are fraught with legal infirmities, it becomes the bounden duty of court exercising revisional powers to curb and stifle such illegalities and material irregularities. Reference in this respect, if needed, can be made to Malik MUHAMMAD KHAQAN versus TRUSTEES OF THE PORT OF KARACHI (KPT) and another (2008 SCMR 428) and IMAM DIN and 4 others versus BASHIR AHMED and 10 others (PLD 2005 Supreme Court 418).

8. For the foregoing reasons, the instant application is **allowed**, impugned judgments and decrees are set aside, as a result thereof, suit instituted by the **respondent** shall stand **dismissed** with no order as to costs.

(MIRZA VIQAS RAUF)  
JUDGE

APPROVED FOR REPORTING

JUDGE

*Shahbaz Ali\**